**TENTATIVE RULING FOR JULY 20, 2026**
**Department R12 - Judge Kory Mathewson**
**Earth Tek Engineering Corp, et al v. A&I Rock Co. Inc. – CIVRS2401384**

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| Motion: | Leave to File Cross-Complaint |
| Movant: | Defendants A & I Rock Co., Inc. and Intravaia Rock & Sand, Inc. |
| Respondent: | Plaintiff Earth Tek Engineering Corporation |
| Ruling: | Motion for Leave to File Cross-Complaint is GRANTED. The Court accepts the proposed Cross-Complaint as filed and served. |

**Defendants to provide Order and give notice.**

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Intravaia motions under section 428.50 of the Code of Civil Procedure for leave to file the proposed Cross-Complaint, which is attached to the instant Motion. Intravaia argues under *Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d 94 (*Silver*), a trial court generally must allow the filing of a cross-complaint unless the moving party's bad faith is demonstrated and here, there is no bad faith. Intravaia contends while it has taken "some time" for Defendants to ascertain the facts necessary to adequately plead the proposed Cross-Complaint, there is no surprise or prejudice to the Plaintiff as the basis for Intravaia's Cross-Complaint was set forth in its Responses to Form Interrogatories, which were served months before Defendants filed their Answer.

In its Opposition, Plaintiff argues Intravaia fails to establish the requisite good faith and instead, the evidence shows that Intravaia's motives in filing this motion are in bad faith. Plaintiff argues Intravaia should have filed the proposed Cross-Complaint approximately 18 months ago and instead waited until Plaintiff had already conducted discovery and trial was imminent. Plaintiff contends Defendants have engaged in improper tactical delay throughout this litigation, including only proceeding with the "meet and confer" process on the day the responsive pleading was due and continuing to delay pushing out the response time. Further, Plaintiff contends it will be prejudiced by the filing of the instant Cross-Complaint as it will now be forced to re-expend attorneys' fees to re-conduct discovery on Intravaia's "new" claims.

Intravaia replies, arguing first that Plaintiff vastly overstates the alleged delay in Intravaia filing its Cross-Complaint as Defendants did not file their Answer until December 29, 2025, and as such, any delay in filing the instant Motion is, at most, approximately six months. As for Plaintiff's contention that it has been prejudiced by Intravaia's delay and will need to re-conduct discovery on of the Intravaia's new claims, Intravaia argues the instant action is not an expert-driven case and there is ample time for written discovery and witness depositions.

There is no dispute that the proposed Cross-Complaint contains compulsory claims arising from the same transactions and occurrences at-issue in the Complaint and as such section 426.50 of the Code of Civil Procedure applies and the instant motion should be granted absent bad faith. (*Silver, supra,* 217 Cal.App.3d at pp. 98-99). The late filing of the motion to file a compulsory cross-complaint absent some evidence of bad faith is insufficient evidence to support d

enial of the motion. (*Id*. at 101.) While an admittedly amorphous concept, bad faith implies or involves actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake, but by some interested or sinister motive. (*Id*. at 100.)

Here, there is no evidence before this court that supports a finding that the delay in filing the instant motion was due to bad faith. (*Id*. at 97). Plaintiff provides no evidence to support its speculation of bad faith and Intravaia's argument that any delay is limited as Defendants' Answer was only filed seven months ago in December of 2025 is well taken.

For these reasons, the Court grants Intravaia's Motion and accepts the proposed Cross-Complaint as filed and served.

Dated: July 20, 2026

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Judge Kory Mathewson

**TENTATIVE RULING FOR JULY 20, 2026**
**Department R12 - Judge Kory Mathewson**
**<u>Alicia Chomi v. 12945-13225 Peyton Drive Holding, LLC et al – CIVRS2400397</u>**

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| Motion: | Motion for Summary Judgment |
| Movant: | Defendants Papao, Inc. *dba* Fukuoka Hakata Ramen (erroneously sued and served herein as Prakonkit Kontong, an individual and doing business as Fukuoka Hakata Ramen and Praiya Noppharattikanon, an individual and doing business as Fukuoka Hakata Ramen) |
| Respondent: | Plaintiff Alicia Chomi (No Opposition) |
| Ruling: | Motion for Summary Judgment is GRANTED. |

<u>Evidentiary basis</u>: Complaint, Answer; motion for summary judgment together with the declaration of Jason P. Tortorici, Esq., and exhibits including discovery responses, the deposition of Plaintiff and the declaration of Prakonkit Kontong, the CEO of Fukuoka Hakata Ramen; separate statement of material facts; notice of non-opposition; Uncontested Material Facts: 1-19.

**Defendants Papao, Inc. *dba* Fukuoka Hakata Ramen to provide Order and give notice.**

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Before the Court is an unopposed motion for summary judgment filed by Defendants Papao, Inc. *dba* Fukuoka Hakata Ramen (erroneously sued and served herein as Prakonkit Kontong, an individual and doing business as Fukuoka Hakata Ramen and Praiya Noppharattikanon, an individual and doing business as Fukuoka Hakata Ramen).

The elements of a cause of action for negligence are duty, breach, causation, and damages. (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.) The duty of a person who owns, leases, occupies or controls real property is under a duty to use reasonable care to keep the premises safe and may be liable under a theory of premises liability. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205; Civil Code, section 1714, subd. (a).) "Premises liability is a form of negligence based on the holding in *Rowland v. Christian, supra*, 69 Cal.2d 108, and is described as follows: The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." [1] (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

The elements for premises liability are: (a) the defendant was owner, occupier or lessor of premises; (b) the defendant was negligent in the use, maintenance, and/or management of the premises, and (c) negligence was the cause of injury, damage, loss or harm to plaintiff. (*Id.*) To prove an unsafe condition of property, plaintiff must prove: (1) a condition on the premises

[1] To establish a general negligence claim, a plaintiff needs to prove: (1) legal duty owed to them; (2) breach of that duty by defendant; (3) causation; and (4) damages to plaintiff. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) To establish the element of actual causation, it must be shown that the defendant's act, or omission to act, was a substantial factor in bringing about the injury. (*Padilla v. Rodas* (2008) 160 Cal.App.4th 742, 752, citing to *Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 778.) "The existence of a legal duty to use reasonable care in a particular factual situation is a question of law for the court to decide." (*Vazquez v. Residential Invs., Inc.* (2004) 118 Cal.App.4th 269, 278.)

created an unreasonable risk of harm; (2) defendant knew, or in the exercise of reasonable care, should have known about it; and (3) defendant failed to repair the condition, protect against harm from the condition, or give adequate warning of the condition. (CACI Number 1003; see also *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206.)

"[A] defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper. [Citations.]" (See *Isaacs v. Huntington Memorial Hospital* (1985) 38 Cal.3d 112, 134.)

Here, from the evidence submitted by the lease and the testimony of the Plaintiff and her discovery responses, Defendants did not have control over the steps on which the Plaintiff fell. The CEO's declaration read: the steps located outdoors at 13089 Peyton Drive in front of Unit A, which used to be occupied by an AT&T store and are located approximately 95 feet from the entrance of FH Ramen. The lease only gave FH Ramen possession and control over 13089-F, a 1475 square foot suite. The steps fell under the "common areas' pursuant to the lease (UMF, ¶ 15) and the common areas was subject to the exclusive control, custody and management of Landlord. (UMF, ¶¶ 16, 18-19.) Additionally, Kontong stated s/he had has never owned the land or structures where 13089 Peyton Drive is located; had nothing to do with the design, creation, construction, maintenance, or installation of the steps depicted in Exhibit C where plaintiff Alicia Chomi alleges that she fell; and did not know of any defects or danger in the area depicted in Exhibit C. (Kontong Decl., ¶¶ 16-18.)

For these reasons, which are also unopposed, the Court grants summary judgment.

Dated: July 20, 2026

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Judge Kory Mathewson